

25PSCV03041 25PSCV03041

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-06-25

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Case Number: 25PSCV03041 Hearing Date: June 25, 2026 Dept: H

Chukwu, et al. v.

Cameron Properties Covina,

Case No. 25PSCV03041

ORDER ON

MOTIONS TO COMPEL FURTHER RESPONSES

1. Defendant Cameron Properties, Inc.'s

Motion to Compel Responses of Plaintiff Chinenye Uwa to Defendant's Form Interrogatories, Set One is GRANTED. Uwa is ordered to provide verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$310.00 and are payable within 20 days from the date of the notice of ruling.

2. Defendant Cameron Properties, Inc.'s

Motion to Compel Responses of Plaintiff Chinenye Uwa to Defendant's Special Interrogatories, Set One is DENIED as MOOT [see below].

3. Defendant Cameron Properties, Inc.'s

Motion to Compel Responses of Plaintiff Chinenye Uwa to Defendant's Requests for Production, Set One is GRANTED. Uwa is ordered to provide verified responses, without objections, to Defendant's Requests for Production, Set One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$310.00 and are payable within 20 days from the date of the notice of ruling.

4. Defendant Cameron Properties, Inc.'s

Motion to Compel Responses of Plaintiff Francis Chukwu to Defendant's Form Interrogatories, Set One is GRANTED. Chukwu is ordered to provide verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$310.00 and are payable within 20 days from the date of the notice of ruling.

5. Defendant Cameron Properties, Inc.'s

Motion to Compel Responses of Plaintiff Francis Chukwu to Defendant's Requests for Production, Set One is GRANTED. Chukwu is ordered to provide verified responses, without objections, to Defendant's Requests for Production, Set One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$310.00 and are payable within 20 days from the date of the notice of ruling.

Background

Plaintiffs

Francis Chukwu ("Chukwu") and Chinenye Uwa ("Uwa") (together, Plaintiffs) are spouses and tenants living at the property located at 361 E. Navilla Place in Covina ("subject property"). The subject property is owned and managed by Cameron Properties—Covina ("Defendant"). Plaintiffs allege that the interior staircase at the subject property was dangerously constructed and slippery. Plaintiffs reported the hazard to Defendant, but no repairs were made. In May 2025, Chukwu slipped on the stairs and severed a leg injury requiring surgery. In July 2025, Plaintiffs fell behind in rent. Defendant refused a housing nonprofit's offer to pay rent on Plaintiffs' behalf and instead served them with a Three-Day Notice to Quit. In July 2025, Defendant refused Uwa's offer to make a full rent payment, without explanation.

On

January 9, 2026, Plaintiffs filed a First Amended Complaint, asserting causes of action against Defendant for: (1) Negligence, (2) Premises Liability, (3) Breach of Implied Warranty of Habitability, (4) Retaliatory Eviction—Civil Code § 1942.5, and (5) Violation of Civil Code § 1947.3—Third-Party Rent Payments.

A Case Management Conference and an Order to Show

Cause Re: Sanctions Up to \$1,500 Pursuant to CCP Section 177.5 for Plaintiff

Chinenye Uwa's Failure to Appear on March 18, 2026 are set for June 25, 2026.

1.

Motion to Compel Form Interrogatories Re: Uwa

Legal

Standard

A response to interrogatories is due within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) "If a party to whom interrogatories are directed fails to serve a timely response, . . . [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290, subd. (b).)

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust . . ." (Code Civ. Proc., § 2030.290, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Uwa to provide verified responses, without objection, to Defendant's Form Interrogatories, Set One within 15 days and imposing monetary sanctions in the amount of \$810.00 against Uwa.

Defendant's

counsel Michael D. Campion ("Campion") represents, and/or the accompanying exhibits reflect, as follows:

On

October 22, 2025, Defendant served the subject discovery. (Campion Decl., ¶ 5, Exh. A.) Responses thereto were due on or about November 21, 2025. (Id., ¶ 7.) On January 6, 2026, Defendant's counsel Tejas B. Patel sent a letter to Uwa, requesting that she provide verified responses, without objections, to the overdue subject discovery no later than January 16, 2026. (Id., ¶ 11, Exh. B.) Defendant has not received responses from Uwa. (Id., ¶ 9). Uwa has not requested an extension or otherwise contacted Defendant regarding the

subject discovery. (Id., ¶ 10.)

The unopposed motion is granted. Uwa is ordered to provide verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant seeks sanctions against Uwa in the amount of \$810.00 [calculated as follows: 2.5 hours preparing motion, plus 0.5 hours preparing reply at \$250.00/hour, plus \$60.00 filing fee].

Sanctions

are awarded in the reduced amount of \$310.00 (i.e., 1 hour at \$250.00/hour, plus \$60.00 filing fee), payable within 20 days from the date of the notice of ruling.

2.

Motion to Compel Special Interrogatories Re: Uwa

Legal

Standard

See

Motion #1.

Discussion

Defendant

moves the Court for an order compelling Uwa to provide verified responses, without objection, to Defendant's Special Interrogatories, Set One within 15 days and imposing monetary sanctions in the amount of \$810.00 against Uwa.

The

motion is denied as moot. The motion was filed on February 11, 2026 and originally set for hearing on July 1, 2026. The docket reflects that on May 12, 2026, Defendant filed a "Motion to Compel Further Responses of Plaintiff Chinenye Uwa to Special Interrogatories, Set One," which was heard and granted by the Court on June 10, 2026. The Court admonishes Defendant's counsel for

failing to withdraw the motion.

3.

Motion to Compel Requests for Production Re: Uwa

Legal

Standard

A

response to a request for production of documents is due within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, . . . [t]he party making the demand may move for an order compelling response to the demand.” (Code Civ. Proc., § 2031.300, subd. (b).)

“[T]he

court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Uwa to provide verified responses, without objection, to Defendant's Requests for Production, Set One within 15 days and imposing monetary sanctions in the amount of \$810.00 against Uwa.

See

synopsis of Motion #1.

The unopposed motion is granted. Uwa is ordered to provide verified responses, without objections, to Defendant's Requests for Production, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant seeks

sanctions against Uwa in the

amount of \$810.00 [calculated as follows: 2.5 hours preparing motion, plus 0.5 hours preparing reply at \$250.00/hour, plus \$60.00 filing fee].

Sanctions

are awarded in the reduced amount of \$310.00 (i.e., 1 hour at \$250.00/hour, plus \$60.00 filing fee), payable within 20 days from the date of the notice of ruling.

4.

Motion to Compel Form Interrogatories Re: Chukwu

Legal

Standard

See

Motion #1.

Discussion

Defendant

moves the Court for an order compelling Chukwu to provide verified responses, without objection, to Defendant's Form Interrogatories, Set One within 15 days and imposing monetary sanctions in the amount of \$810.00 against Chukwu.

Campion

represents, and/or the accompanying exhibits reflect, as follows: On October 22, 2025, Defendant served the subject discovery. (Campion Decl., ¶ 5, Exh. A). Responses thereto were due on or about November 21, 2025. (Id., ¶ 7). On January 6, 2026, Defendant's counsel Tejas B. Patel sent a letter to Chukwu, requesting that he provide verified responses, without objections, to the overdue subject discovery no later than January 16, 2026. (Id., ¶ 11, Exh. B). Defendant has not received responses from Chukwu. (Id., ¶ 9). Chukwu has not requested an extension or otherwise contacted Defendant regarding the subject discovery. (Id., ¶ 10).

The unopposed motion is granted. Chukwu is ordered to provide verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant seeks sanctions against Chukwu in the amount of \$810.00 [calculated as follows: 2.5 hours preparing motion, plus 0.5 hours preparing reply at \$250.00/hour, plus \$60.00 filing fee].

Sanctions are awarded in the reduced amount of \$310.00 (i.e., 1 hour at \$250.00/hour, plus \$60.00 filing fee), payable within 20 days from the date of the notice of ruling.

5.
Motion to Compel Requests for Production Re: Chukwu

Legal
Standard

See
Motion #3.

Discussion

Defendant moves the Court for an order compelling Chukwu to provide verified responses, without objection, to Defendant's Requests for Production, Set One within 15 days and imposing monetary sanctions in the amount of \$810.00 against Chukwu.

See
synopsis of Motion #4.

The unopposed motion is granted. Chukwu is ordered to provide verified responses, without objections, to Defendant's Requests for Production, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant seeks sanctions against Chukwu in the amount of \$810.00 [calculated as follows: 2.5 hours preparing motion, plus 0.5 hours preparing reply at \$250.00/hour, plus \$60.00 filing fee].

Sanctions

are awarded in the reduced amount of \$310.00 (i.e., 1 hour at \$250.00/hour, plus \$60.00 filing fee), payable within 20 days from the date of the notice of ruling.